NON-REPORTABLE

IN THE SUPREME COURT OF INDIA
CRIMINAL APPELLATE JURISDICTION

CRIMINAL APPEAL NO. 855 OF 2024
(Arising out of SLP (Crl.) No. 14130 of 2022)

GURMEET SINGH BEDI ...APPELLANT(S)

VERSUS

STATE (GOVT. OF NCT OF DELHI) & ANR. ...RESPONDENT(S)

J U D G M E N T

HARISH C. MAHAPATRA, J.

1. Leave granted.

2. The appellant is aggrieved by the order dated 13.10.2022 of the High Court of Delhi in CRL.M.C. 2850/2022, whereby the High Court declined to quash FIR No. 0412/2022 registered for offences under Sections 420, 468 and 471 of the Indian Penal Code, 1860.

3. The allegation is that the appellant executed a sale deed in respect of a farmhouse on the strength of a forged power of attorney. The appellant contends that the power of attorney is genuine, that the dispute is civil, and that the High Court ought to have examined the documents and quashed the FIR.

4. The question is the extent of the power of the High Court under Section 482 of the Code of Criminal Procedure, 1973 to examine the evidence while considering a prayer to quash an FIR.

5. This Court has repeatedly cautioned that, in exercise of power under Section 482 of the Code of Criminal Procedure, 1973, the High Court cannot embark upon a mini-trial or weigh the evidence; the allegations in the FIR are to be taken at face value, and the High Court is to ask only whether they disclose a cognizable offence.

6. The High Court correctly declined to appreciate the genuineness of the power of attorney or the effect of registration, which are matters of evidence. The pendency of civil proceedings does not bar a criminal case where the allegations constitute an offence. We see no ground to interfere. The appeal is dismissed.

SYNTHETIC TEST FIXTURE - fictional case generated for BenchSplit; not a real judgment

.....J.
[HARISH C. MAHAPATRA]

.....J.
[MEERA K. KAPADIA-RAO]

NEW DELHI;
MARCH 12, 2024.

SYNTHETIC TEST FIXTURE - fictional case generated for BenchSplit; not a real judgment